

GREECE 2011

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1. Review of the system

1.1. Average Worker Wage (AW)

The 2011 data for gross wages is currently under review within the Centre for Tax Policy and Administration.

2. Unemployment Insurance

The unemployment insurance system covers persons who are insured against diseases with a social insurance body. The benefits are divided into regular benefits and special allowances. This programme is targeted on employees that became unemployed against their will and are not capable of finding a job relevant to their qualifications.

2.1 Condition for receipt

- The person must be capable of and available for work
- The person must be unemployed unwillingly
- The person must have registered with an employment agency.
- The person must not receive a pension equal to or larger than the minimum pension granted by IKA (Social Insurance Institute)
- The person must not be self-employed.

2.1.1 Employment conditions

The persons applying for the benefit for the **first time** must have worked for at least 80 days per year in the last two years prior to their application and

- 125 days of employment in the last 14 months prior to applying for the benefit (the last two months prior to the commencement of unemployment are not taken into consideration in the calculation of these 125 working days), or
- 200 days of employment in the last 2 years prior to the dismissal (the last two months prior to the commencement of unemployment are not taken into consideration in the calculation of these 125 working days)

A person applying for **second time** must satisfy the following condition: a contribution record of 125 working days in the last 14 months prior to his/her dismissal (the last two months prior to the commencement of unemployment are not taken into consideration in the calculation of these 125 working days).

As for the employees in the tourism sector (or seasonal workers, e.g. musicians, actors), the following condition must satisfy: 100 working days in the last 12 months.

2.1.2 Contributions conditions

The system is contributory. The contributions made to the OAED (Manpower Employment Organization) are paid both by the employer and the employee.

2.2 Calculation of benefit amount

2.2.1 Calculation of gross benefit

Pursuant to article 5 of Act 3352/07 the unemployed that were employed in a full-time job, the basic unemployment benefit is defined to 50% of the daily wage of the unskilled worker from January 1st and from January 1st 2008 to 55% of the daily wage of the unskilled worker.

To the unemployed that were not employed in a full-time job and whose monthly wages were lower than or equal to the six-fold of the daily wage of the unskilled worker, 50% of the basic unemployment benefit is paid, whereas to the unemployed that were not employed in a full-time job and whose monthly wages were higher than the six-fold and lower than or equal to the twelve-fold of the daily wage of the unskilled worker, 75% of the basic unemployment benefit is paid.

The basic daily unemployment benefit on the 1st July 2011 amounts to 18,46€, while the monthly one to 461,50€.

The lowest daily unemployment benefit is 9,08€ and the monthly 227,00€.

The unemployment benefit is paid for 25 days per month and increases by 10% for every dependant member of the beneficiary.

2.2.2 Income and earnings disregards

None. The payment of the benefit is interrupted in case there is an income from commercial businesses or liberal professions.

2.3 Tax treatment of the benefit

No taxation is imposed on the benefit.

2.4 Benefit duration

The benefit is paid after a waiting period of six days.

The period during which the unemployment benefit is being paid depends upon the contribution record the applicant establishes before becoming unemployed and varies between 5 and 12 months, as follows:

Days of employment (in the 14-month period)	Tourism sector 12-month period	Construction workers (14-month)	Duration (months)
125-149 ¹	100-149	100-149	5
150-179 ²	150-179	150-179	6
180-219 ³	180-219	180-219	8
220-249	220-249	220-249	10
250 or more	250 or more	250 or more	12
210 days and 49+ years old	210 or more	210 and 49+years old	12

1. or 200 in the 2-year period

2. or 250 in the 2-year period
3. or 300 in the 2-year period

Unemployment benefit complement

According to the law 1892/90 (article 37 parag. 3) an unemployment benefit complement is provided, up to a maximum of 12 months, in case the unemployed has not fulfilled the employment conditions for having the right to 12 months of unemployment benefit, but has the right to some months of unemployment benefit and has already 4050 days of work. For instance, if the unemployed has fulfilled right for 3 months of unemployment benefit and has already 4050 days of work he/she will get 9 months of unemployment benefit as a complement.

2.5 Treatment of particular groups

2.5.1 Young persons

Benefit paid to young persons (aged 20-29)

The benefit is paid to young persons, on condition that these are unemployed and remain included in the list of the unemployed for one year. The benefit amounts to 73,37€ per month and increases by 5,87€ for each dependant (child-spouse), and is paid for a period of 5 months. The benefit aims to support new entrants into the labour market.

Family status	Amount (in €s)
Single parent	73,37
Couple	79,24
Either single parent or a couple with children	5,87 for each child

2.5.2 Older workers

The uninsured persons that are older than 65 years old, have no assets and whose income does not exceed the OGA(Agricultural Insurance Institute) basic pension, are granted a pension, which is equal to the basic pension granted by the OGA, in the framework of a special account. The OGA grants the said pension on order of the Ministry of Health and Social Solidarity.

The amounts of pensions granted to uninsured persons by the OGA since Oct 1st 2009 are as follows:

360,00€ granted to persons without family burdens

363,32€ granted to persons with a spouse under 65 years of age

366,63€ granted to persons with children under 18 years of age and a spouse over 65 years of age who does not receive a pension.

3. Unemployment Assistance

3.1 Special aids (Conditions and duration)

3.1.1 Special aid after the end of payment of the unemployment allowance

A special allowance, which comprises 13 basic daily wages of the unemployment benefit (it amounts to 18.46€), is paid to the unemployed who are not temporarily employed following the end of payment of the unemployment benefit, on condition that they remain unemployed and their family income does not exceed a fixed amount (9,391,05 € for 2011). This special allowance amounted to 239.98€ (18,46*13).

3.1.2 Special aid after a three-month registration in the unemployed persons list

It is paid to the unemployed, who do not have the prerequisites for a regular benefit (not seasonal workers) and have actually worked for at least 60 days in the year prior to that in which they registered with the OAED. These persons must remain unemployed (registered with the OAED) for 3 months. The benefit is paid every three months in three separate installments in the same year. The payment consists of 15 daily wages of the unemployment benefit, on condition that their family income does not exceed a fixed amount (9,391.05 € for 2011). This special benefit amounted to 276,90 € from 01/07/2011 (18,46*15).

3.1.3 Other special benefits – Short-time work benefit

In case of work suspension (usually occurs when a company is financially weak), unemployed people receive by OAED assistance for the period under suspension. This assistance is equal to 10% of the average regular earnings recorded in the last two months of full time employment prior to work suspension.

These benefits are not paid for longer than three months per year.

3.2 Income and earnings disregards

None.

3.2.1 Calculation of the benefit

3.2.1.1 Irregular additional payments

No additional benefits are granted.

3.2.1.2 Obligations of family members

The family members are under no obligation.

3.2.2. Income and taxes disregards

None. The payment of the OAED benefit ceases, in the case of an income, by any source, exceeding 9,097.58Euro.

3.3

No taxation is imposed on special allowances.

3.4 Treatment of particular groups

It is impossible to grant a benefit again

3.4.1 Young persons

A benefit granted to young persons (aged 20-29).

The benefit is granted to young persons, on condition these are unemployed and remain registered as unemployed for one year. The benefit amounts to 73,37€ per month and is paid for a period of five months. It aims to support the new entrants into the labour market.

3.4.2 Long-term unemployed people

The OAED grants a benefit to the long-term unemployed.

The “long-term unemployed people benefit” is paid to persons between **45 and 65 years of age** who are insured for the unemployment risk, and remain registered as unemployed with the OAED for twelve consecutive months and have exhausted their regular unemployment insurance right after 12 months of payment (irrespective if it happened in the last 12 months or in the past, consecutively or with suspensions), and their family income does not exceed 5.000€ (increased by 587 € for every child under the age of 18).

The benefit amounts to 200€ and is paid for twelve months (at most).

The increase of 10% by each dependent person is given only to the “special aid” recipients and not to the recipients of the “long-term unemployed people benefit”.

3.4.3 Seasonal aid

This aid is offered to persons belonging to occupational groups employed on a seasonal basis (construction workers, tobacco workers, actors, tile makers, forest workers, musicians, etc). The aid is paid on a yearly basis in the period from 1 October to 20 December. The following prerequisites must be fulfilled:

- The applicant must have actually worked for 50 – 210 days, as the case may be in the pertinent branch in the year prior to the year of payment.
- The applicant must not have actually worked for more days in branches other than the pertinent one in the previous year.
- The total of daily wages in any work must not exceed 240.
- The applicant must not fulfill the preconditions for regular benefit in the period in which the seasonal aid is paid.

3.4.4 Worker laid off due to insolvency of the employer

The OAED keeps an independent account called “Account for the protection of workers against employers’ insolvency”. The said account aims to pay up to three months earnings unpaid, due to the employer’s insolvency, as provided for in a contract of employment or a dependent working relationship. These earnings are considered and are being taxed as paid services.

4. Social assistance

EKAS (social solidarity benefit for pensioners):

Concerning the social solidarity benefit for pensioners above the age of 60 of all main insurance funds, which amounts between 100-300 euros (Law 3896/2010, art.31), we would like to inform you that some special beneficiaries’ categories have been excluded from the age limit, namely the pensioners due to disability and persons with disability above 67%.

It is a non-contributory monthly benefit, providing financial support to receivers of old-age, invalidity or survivors’ pensions. [The scheme was first introduced in 1996 (Law 2434)]. This allowance is financed by the State Budget.

The recently passed **Law 3996/05.08.2011** on the restructuring of the Labour Inspectorate (SEPE) provides information on EKAS (**Article 34** – redefining the EKAS eligibility conditions). More information/ guidance on EKAS provision (in relation to Article 34 of the above mentioned Law) is provided by the encyclical circulated by the General Secretariat of Social Security on August 16, 2011 – Α.Π.Φ. 80000/οικ. 18510/1227 (ΑΔΑ: 4ΑΜΕΛ-ΩΣΦ).

Conditions that must be met cumulatively by the pensioners in order to receive the EKAS:

- Old-age and survivors pensioners must have (on 1 January 2011) at least 60 years of age
- The total net annual income from pensions (main pensions, supplementary pensions and benefits), salaries, wages and other allowances may not exceed EUR 8,472.09.
- The total annual individual taxable income may not exceed EUR 9,884.11
- The total annual family taxable income may not exceed EUR 15,380.90.
- The total gross pension (main and supplementary) paid the month that the 3996 Law becomes effective may not exceed 850 euros.
- Pensioners should reside permanently in Greece

The payable amount of EKAS is as follows:

Amount of Income	Amount of EKAS (in Euros) per month
Up to 7,715.65	230.00
7,715.66 – 8,018.26 euros	172.50
8,018.27 – 8,219.93 euros	115.00
8,219.94 – 8,472.09 euros	57.50
8,472.10-9,200.00 euros *	30.00

*The total annual family taxable income may not exceed EUR 13,500

- According to Law 3896/2010 “Implementation of the principle of equal opportunities and equal treatment of men and women in matters of employment and occupationOfficial Gazette A. 277 8.12.2010”- article 31], an ‘**extraordinary financial support**’ is provided in order to support the low pension earners aged above 60 years (after satisfying certain income criteria), amounting from 100 up to 300 euros.

Level of assistance	Income criteria*
300 euros	personal income does not exceed 7,000 euros & the family income is below or equal to 12,000 euro

200 euros	personal income between 7,000.01 and 8,500 and family income below or equal to 14,500 euros
100 euros	personal income between 8,500.01 and 10,500 euros and family income below or equal to 16,500 euros

*For fiscal year 2009

- **4.1 Programmes to support persons with disabilities**

There is no general framework, but there are provisions for persons in great need. The Ministry of Health and Social Solidarity implements 10 programmes of financial support for persons with disabilities depending on the kind, the category or the seriousness of the disability.

- By virtue of law 3016/2002 ("For the corporate governing, subjects of wage scale and other provisions", O.G. A.110/17.05.2002) as amended by law 3879/2010 ("Development of life long learning and other provisions". O.G. A. 163/21.9.2010) a "social solidarity allowance is provided in order to support the families of Greek nationals and national members of the E.U., as well as single families. Which have children who study in public schools and their annual family income does not exceed the amount of 3.000 euros. The allowance which has been provided since 2002 as an annual economic aid, is 300 euros per child up to the end of compulsory education until the 16th year of age.

4.2 Non-institutional Benefit

In accordance with the provisions of Act No1140/1981 and Joint Ministerial Decision No61384/6138/19-5-1983 of the Ministers of Defense, Interior, Justice, Finance, Health and Social Solidarity and of Public Order, as amended and in force, active employees of Local Self-Government Agencies suffering from quadriplegia or paraplegia as well as their family members suffering from the same diseases are entitled to a non-institutional benefit paid by either the body which is the employer of the beneficiary (Local Self-Government Agency) or by the insurance body of the beneficiary.

In order for the Local Self – Government Agency to grant the said benefit, the following preconditions are necessary: a) the beneficiary is an active employee, b) the beneficiary does not receive a benefit from an other source and c) the beneficiary is not hospitalized. The benefit is granted from the LSGA's budget. For the quadriplegic and the paraplegic persons insured in the public sector, the benefit in 2011 amounted to 742 euro.

5. Housing benefits

5.1 Conditions for receipt

The Workers' Housing Agency (OEK) beneficiaries are granted financial aid (rental subsidy) so that they may deal with the cost of renting a house. In order for the beneficiaries to receive the rental subsidy, they must fulfill the insurance, as well as other, prerequisites provided for in the Regulation called "Prerequisites for the granting of houses or loans by the OEK", i.e. they must have actually worked with insurance for a specific number of days, depending on their family composition, and neither they themselves nor any dependent member of their family must own a house or possess other assets, which might secure their housing. The beneficiaries that are individuals must have worked for a specific number of days, depending on the category (e.g. workers, working paraplegic - blind, etc), and fulfill the rest of legal prerequisites.

The status of being a pensioner is the only precondition for the participation in the rental subsidy programme, as far as the retired beneficiaries of the OEK are concerned.

The long-term unemployed beneficiaries of the OEK, as long as their unemployment and its duration are ascertained, are provided with a rental subsidy for the period of time during which they receive an OAED benefit, as well as for another two years following the termination of the benefit payment.

Ministry of Education, Life Long Learning and Religious Affairs

Tertiary education undergraduates are granted an **annual housing allowance of 1.000€**, in accordance with the provisions of Act No.3220/04 and Ministerial Decision No.1004908/301/02-02-04. The said allowance is paid for as long as the studies last, according to the rules of procedure of each department. Tertiary education graduates, who attend a course aiming at obtaining a second or a Master's degree, are not entitled to the above allowance, irrespective of how they have been admitted to the said course.

There is no specific age limit for a beneficiary, in order to be entitled to the allowance, provided that the legal preconditions are met. The student must reside in a rented house, which, due to his/ her studies, is in a city other than the one of his/her main residence, where neither his parents nor he/ she have the full ownership or the usufruct of another residence. Those who reside in university student halls and boarding houses are not entitled to the allowance. In order for the allowance to be granted, the annual family income of the previous fiscal year must not exceed the amount of 30.000Euro, increased by 3.000Euro for each dependent child, beyond the first one.

5.2 Calculation of the amount of the benefit**5.2.1 Calculation of the gross benefit (per month)**

Type of family	Monthly Benefit	Annual Benefit
Single persons and couples	115€	1.380€
Couples with one dependent child	140€	1.680€
Couples with two dependent children	165€	1.980€
Couples with three dependent children	215€	2.580€
Couples with four dependent children	215€	2.580€

The amount of the 215€ benefit increases by 25€ per month for each dependent child beyond the fifth child (Children are considered as dependent until they complete their 21st year of age, whereas, if they study at Universities or Technological Educational Institutes or at post-compulsory secondary education state schools, until they complete their 25th year of age. There is no age limitation for children who are incompetent for any type of work)

The abovementioned amounts of rental subsidy increase by 50% for the following OEK beneficiaries participating in the 2009 rental subsidy programme, depending on the category they belong to:

- Long-term unemployed persons, as well as beneficiaries who became unemployed due to the denouncement of their contract of employment in the year 2009, provided that they were unemployed for more than three (3) months.
- Unemployed beneficiaries who moved from their permanent residence and found work in other Prefectures in the year 2009.
- Beneficiaries whose net family income is less than 8.000,00€ in the fiscal year 2009.

Ministry of Education, Life Long Learning and Religious Affairs

The housing allowance granted to the beneficiaries-students of tertiary education amounts to 1.000Euro annually, and the relevant total sum that was granted during the fiscal year 2011 amounted to 41.500.00Euros.

5.2.2 Income and earnings disregards

The rental subsidy is granted to all low-paid beneficiaries, workers and pensioners, whose annual net family income does not exceed 12.000€ in the fiscal year 2008. This amount increases by 2.000€ for each dependent child.

Since 2009 all kind of incomes coming from every source included in the tax return form, is considered as family income, without any of the exceptions of previous years. That means that all kinds of benefits are included in the net family income (disability benefit,

unemployment benefit etc), as well as profits made from gambling (lottery, football forecasts etc).

The payment of the benefit is discontinued in the case that another aid is granted by the OEK; more specifically, from the date that the loan agreement is signed or a house is granted.

5.2.3

In 2011 by Ministerial Decisions a rent subsidy programme has been approved and implemented, covering the rents for 2009 (the submission of applications started on 18/4/2011 and ended on 29/11/2011 and the first benefits were sent recently). There has been a delay in the announcement of the programme due to the financial constraints of the OEK, but nevertheless every year's subsidy was given (the last programme that has been implemented concerned the 2008 rents). **So far there has been no announcement for the 2010 rents.**

The Ministerial Directive 4363/197 (GG 373, 9.3.2011, Volume B) determines the insurance requirements needed for participation of beneficiaries of Workers' Housing Organization (OEK) in the rent subsidy programme (for rents paid in 2009).

For 2011, there is a budget reduction of the programme (budget :186.810.000€)due to the limited financial potential of OEK . Nevertheless, the criteria are reformed to prioritize and support those who need it most: retirees, long-term unemployed, young couples and vulnerable groups of workers, employees with dependents e.t.c.. The income criterion for joining the programme remains to 12.000 €, with an increased amount of subsidy for incomes up to 6.000 € 6.001 € and up to 9.000 €./ Joint Ministerial Directive 4510/204/ (GG 445, 21.3..2011, Volume B)

5.3 Tax treatment of the benefit

No taxation is imposed on the benefit.

5.4 Benefit duration

The scheme has one-year duration and is paid once as a lump sum.

The scheme is repeated every year, as long as the requirements set are met every time. As mentioned above, **so far there has been no announcement for the 2010 rents.**

5.5 Treatment of special groups

The Special Solidarity Fund is still valid, but due to the financial constraints of the OEK, during the last two years the programme has been suspended, because the State has not approved any beneficiaries who can use it.

Moreover, we inform you that by a recent law there have been adopted and are being implemented adjustments concerning the paying off of beneficiaries' debts from previous benefits (loans etc) that were offered by funds from the OEK. These adjustments offer the possibility to pay off with some discount over the due and the non-due debts, as well as the possibility to suspend the installments and extend the deadline when the beneficiary is unemployed and receives an unemployment benefit by the OAED, for as long as he/ she receives this benefit, with the precondition that his/ her family income does not exceed the amount of 20.000 euros per year. The submission of applications was over on the 31/12/2011 and the suspension of the installments cannot go beyond the 31/12/2012

Housing Assistance Program for elderly persons over 65

The Ministry of Health and Social Solidarity implements the housing assistance program to single, uninsured and financially weak elderly persons over 65 as well as to couples of uninsured and financially weak elderly persons for whom it has been proven that they do not own a house and live in rented accommodation and pays a housing allowance in the form of rent.

The term elderly comprises all persons of 65 years of age or older. The beneficiaries can be either single elderly persons, i.e. persons who live alone, or couples of elderly persons who live alone. In the case of couples, at least one of them must have completed the age of 65. In each case the beneficiaries must

- a) be uninsured, i.e. they must not receive pension from any insurance body, with the exception of elderly persons who, according to the provisions of Act No1296/82 and of article 17 of Act No1422/84, receive the pension granted to uninsured persons through the special fund of the Agricultural Insurance Institute (OGA) and can be entitled to housing assistance.
- b) be financially weak, according to the provisions of Legislative Decree No57/73, and must not have any income coming from any domestic or foreign source or any real estate which can give them the ability to pay for their housing expenses.
- c) not have their own house and live in a rented accommodation.

The program is implemented by the department or the section of Social Welfare of the competent Municipality. In addition to the necessary documentation that should be presented by the would-be beneficiaries, a report written by a social worker of the competent Social Welfare Department mentioning the socioeconomic status of the uninsured elderly person together with a proposal of whether he/she should be entitled or not to receive housing assistance are also required.

For those who are deemed to be beneficiaries, the benefit is paid to the owners of the residences themselves, following the signing of a private agreement between the social welfare service of the competent Municipality and the owner. The amount of the monthly benefit is determined each time by a ministerial decision. According to Ministerial Decision NoP3a/F.18/G.P. 63731 (O.G.931/B/21-05-2008), this amount is 362 euros for the year 2011. The elderly beneficiaries do not pay tax on this housing assistance benefit. The owners of the residences are taxed on their incomes according to the provisions that apply for all taxpayers.

6. Family support

6.1 Family Allowances

A general scheme is applied, which is supplemented by the employer.

6.1.1 Conditions for receipt

The preconditions for receiving the family allowance is that the beneficiary must have actually worked for fifty days in the year preceding to that in which the relevant application is submitted or a two-month regular subsidy due to unemployment or a two-month continuous inability to work.

The children for whom allowance is granted must:

- a) be under 18 years of age or under 22 years of age, in case of students
- b) if they are incapable of working, for as long as their incapability lasts
- c) be single
- d) reside either in Greece or in another EU Member State.

6.1.2. Calculation of the benefit amount

(General scheme)

The amounts of allowances (per month), as readjusted for the year 2011, have been formulated as follows:

1 child	8.22€
2 children	24.65€
3 children	55.47€
4 children	67.38€
For each additional child	11.30€
so, 5 children	78.68€

There is a special allowance for parents with more than 3 children	
3 rd child (up to the age of 6)	177 € monthly
Families with 4 or more children	44€ monthly per child

Life-Long pension to mothers with more than 3 children	€ 102 monthly
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By virtue of Act No3631/08 a monthly benefit is granted to mothers, who have or give birth to three living children, for each unmarried child under the age of 23. The monthly benefit is 44 euros for each child and equals to the benefit paid each time for every child of a family with many children.

Regarding family allowances for multi-child families and for three-child families, we would like to inform you that para. 3, art. 21, Law 4025/2011 (O.G. 228), stipulates that from 1.11.2011 all family allowances paid to multi-child families and to three-child families will be discontinued provided they have a total annual net family income of more than 55.000 euros, which will be increased by 5.000 euros for every child over the fourth.

The employer usually pays each worker (married or not) with 5% of the gross income adding 10% for the spouse. The amount paid for the spouse is independent of her status of employment and income.

Women working with employment contract and are insured at the IKA are entitled to a complementary pregnancy and post-natal benefit.

This complementary benefit equals to the pregnancy and post-natal benefits granted by the IKA minus the regular wage. The regular wage is granted and insured by the competent insurance fund when the pregnancy occurs.

The complementary benefit is granted for as long as the pregnancy and post-natal benefits are granted, but not during the period when the employer is obligated to pay for the wage.

OAED grants the complementary benefit as a lump-sum amount after IKA has granted the full amount of the benefits.

Treatment of special groups

The amounts of family allowances increase by 3,67€ per month and by 44,04 per year for each child in the following cases:

- a) For not recognized children born out of marriage
- b) For children with disabilities
- c) For parentless orphans
- d) When the beneficiary is a widow
- e) When the beneficiary has a disabled spouse
- f) When the beneficiary's spouse is a soldier

6.2. Pregnancy and post-natal period benefit

The IKA-ETAM subsidizes the women directly insured with it for 56 days before the presumed date of confinement (pregnancy benefit) and for 63 days after it (post-natal period benefit), i.e. for a total of 119 days (17 weeks), according to the provisions of article 11 of Act No2874/2000 (O.G. 286/A'). During this maternity leave, the insured woman is granted 50% of the imputed daily wage of the insurance class to which she belongs, on the basis of the average earnings of the last 30 days of the previous year, as well as the child allowance (10% for each child and up to 40% maximum). In this case, the minimum amount of the benefit equals to the 2/3 of the insured woman's earnings and the maximum amount of the said benefit, Women employees receive the benefit from:

- a) the insurance body that they are insured with
- b) the Hellenic Manpower Employment Organization (OAED) and
- c) their employer.

During leave, women are paid by the Social Insurance Institute. Additionally, they receive an amount from their employer that refers to fifteen-day wages or one monthly salary, depending on their previous service to this employer; the employer is entitled to deduct from the said benefit any amount the woman worker may receive from her insurance body as a subsidy for the same period of time. The Greek Manpower Employment Organisation pays a supplementary amount to ensure the mother's income reaches the level before the leave.

This benefit is also granted to all foreign mothers who fulfill the above-mentioned preconditions and legally reside in Greece.

6.3. Post confinement care benefit

This is the confinement aid paid for expenses incurred for medical services before, during and after labour in a hospital. This birth grant, is equal to 30 times the statutory minimum daily wage of non-qualified workers, and is given to mothers in paid employment, which for the second semester of the year 2011 is €1007.00 and is paid by the Social Insurance Institute. The Social Insurance Institute pays also €352 towards the costs of in vitro fertilisation (it is paid for each attempt/maximum four times).

A tax-free lump sum grant of €2,000 is given for the birth of the third and every subsequent child. From 1.11.2011 all family allowances for families with three children and family income more than 55000 € are abolished. For larger families this amount is increased by five thousand € for each child.

Financial benefits are also granted due to maternity to working women that are not eligible to receive them from the insurance body or are uninsured. The said benefits are granted for a period of six weeks prior to the childbirth and aim at securing satisfactory living standards. These benefits amount to 440,20€ (220,10€ before the childbirth and 220,10€ after it).

According to a new regulation concerning health benefits (JMD Number. F.90380/25916/3294, GG 2456 Vol. B/3.11.2011), maternity benefits for insured both in the private and public sector will be readjusted in 2012.

In public hospitals of the National Health System, in case of labor (normal or with cesarean), the insurance funds give directly to the hospital the amount of money as provided for in the unified hospital expenditures (JMD Y4a/85649/27-7-2011). Also, in that case the insured women receive the labor benefit if they give birth to private clinics, without any expenditures by their insurance fund. IKA – ETAM pays 1.007 euros and in case of cesarean birth four extra days of hospitalization.

Special Maternity Leave

By virtue of Act 3655/2208, art.142, a special maternity leave was instituted. Mothers insured at the IKA – ETAM and working with a fixed-term or non fixed-term contract, are entitled to this additional leave. As specified under art.36 Law 3996/2011, the beneficiaries for the special maternity leave, are the private sector employees who earn the minimum benefits of art.9 of the 2004-2005 National General Collective Agreement concerning the post-natal leave.

The additional leave is granted after the end of the pregnancy/ post-natal leave or the end of the 3.5 months leave granted in substitution of the reduced-time period, according to art.9 of the National General Collective Agreement 2004-2005. The special maternity leave starts the day the pregnancy/ post-natal leave or the reduced-time period ends.

OAED is obligated to pay a monthly benefit to the working mother that equals to the minimum wage as set by the National General Collective Agreement, as well as the proportion of holiday benefits and leave benefits according to the minimum wage.

According to Law 3896/(Article 16) the worker who has obtained a maternity leave /or *special maternity leave* shall be entitled, upon expiry of such leave, to return to her job or to an equivalent post on the same employment terms and conditions and to enjoy any improvement of working conditions, to which she would be entitled during her absence. Additionally the employer cannot deny hiring a woman due to her pregnancy or maternity. Law 3896/2010 (article 20)

Additionally, by Law 3996/2011(Article 36) women that take the special maternity leave are also insured for medical care

6.5. Support of unprotected children scheme: through this scheme, a monthly benefit of 44,02€ is paid to each unprotected child up to age of 16, provided that the monthly income of the family that the child is living with does not exceed the amount of 2820€ for a three-member family (this amount increases by 250€ for each member of the family beyond the third one). This benefit is granted to the following cases:

1. Children left orphans of both parents
2. Children left orphans of their father
3. Children whose father cannot respond to their subsistence and upbringing needs due to physical or mental disability (67% and more), suffering from diseases that are indicated in detail at art. 1, P.D. 108/83, moral demerit, abandonment, imprisonment, military service, AIDS,
4. Children born outside of marriage and exposed.

Financial assistance is not provided to unprotected children found in institutions that provide free of charge services and care and operate all year round at a 24-hour basis.

7. Child care benefits

In 2010-2011 the OEE (Workers' Fund) in 24 Day Nurseries hosted in total 1.221 children, of which 391 in the prefecture of Attica and 830 in the region (age 8 months- 5 years).

As far as the childcare programmes are concerned, a scheme is followed in accordance with the rules of modern preprimary education and pilot educational, training and entertainment programmes are carried out in the nurseries, such as educational walks, action plans on intercultural education, environmental education, etc. During 2010-2011, 145 educators, as well as 80 persons as administrative and assistant personnel, were employed.

The operational costs (catering-minor expenses-gifts for children) of the OEE Infant Nurseries for the fiscal period 2010-2011 were as follows:

- Standard operational costs: 568,910.40 euro

During 2011 there were no costs for the end of school year manifestations, for educational excursions and for Christmas and New Year's celebrations.

Furthermore, we would like to inform you that, since the summer of 2008, the OEE has incorporated a new scheme into its activities, whose objective is to provide benefited women with posts, concerning the care and accommodation of infants, preschoolers, children and adolescents, in structures (infant nurseries, infant nurseries of integrated care, day nurseries, centers for children's participation in creative activities – KDAP, and centers for the creative activities of children with disabilities – KDAP-MEA) and which aims at increasing the employability of women and their equal opportunities regarding access to work.

Within the framework of the said scheme, during the period 2009-2010, 539 structures participated (with 17.785 offered jobs), each of which implementing their own training programs. The number of women beneficiaries amounts to 14.888, while the number of children hosted, under agreements, amounts to 14.245.

Regarding the child care expenses paid, the parents do not bear the economic burden in none of the two schemes implemented by the Workers' Fund (OEE).

7.1 Out-of-pocket childcare fees paid by parents

As far as the imposition of catering fees for the municipal day nurseries is concerned, it is provided for by the provisions of article 9 of the Model Regulation for the Operation of Municipal Day and Infant Nurseries (Joint Ministerial Decision No.16065/22-4-2002, O.G.B'497), in accordance with which the Administrative Board of the legal entity – following a fully documented consent of the relevant Local Self-Government Agency (OTA), which is in conformity with the social nature of the services provided – may define the criteria for the imposition of a monthly payment (catering fees) to the families of the hosted children, depending on their financial state. The same Administrative Board decision defines

the cases of families that may be exempted from the payment of this financial contribution, or that may make reduced payments.

It is noted that the decision to impose catering fees is subsumed in the framework of the OTA and their respective legal entities' financial and administrative independence.

The Nurseries that take into account the family income, in order to determine the amount to be paid as catering fees, use many different scales regarding both the income and the fees. As far as the amount of paid catering fees per parents' income scale is concerned, there are variations regarding the amount of catering fees imposed by Crèches [Day Nurseries] and Infant Nurseries, not only among income categories, but also within the same category, and the fees vary from 30Euros up to more than 80Euros.

In order to improve the living conditions of the children and the standards of services offered, parents pay catering expenses depending on their family income.

Table : Catering expenses (in €) in 2008

Family income (in €)	Catering expenses (in €)*
Up to 5.898,4	Free
5.898,41 – 8.804,11	20,54
8.804,11 – 11.738,81	26,41
11.738,81 – 14.673,51	35,22
14.673,51 – 17.608,22	44,02
17.608,22 – 20.542,92	52,82
Over 20.542,92	64,56

* half expenses are paid for the second child.

Families with more than three children and parents with disabilities (more than 67%) are exempt from the obligation to pay catering expenses when their income is up to 20.542,92€ (when the income is more than 20.542,92€, the expenses for the third child are 20,54€ and 10,27€ for every child beyond the third one). It is not always mean-tested.

7.2 Child-care benefits

By virtue of para5 of article 1 of Act3296/2004, the tax relief of 15% on the expenses for Day and Infant Nurseries has been repealed.

8. Allowances depending on employment

None.

9. Allowances for single-parent families

There is a fixed allowance for children without financial support. Please, refer to family allowances.

10. Tax system

10.1 Income tax schedule

10.1.1 Tax allowances and credits

Standard tax reliefs

Tax reliefs on social security contributions: contributions to social insurance institutes are not considered taxable income.

10.1.2 Definition of taxable income

For income tax purposes, there are six categories of taxable income: income from immovable property (category A-B), income from movable property (category C), income from business

(category D), income from agriculture (category E), income from employment (category F) and income from professional services or other sources (category G).

Net income is computed separately within each category with tax rules that vary across income categories. Total taxable income is computed as the aggregate of the net results of all categories. Losses in one category may be set off against income of another category. If the declared income is not accepted as the base for the tax assessment, the tax authorities can base the assessment on the presumptive income, which is the minimum amount of income required to cover the taxpayer's main living expenses.

Employment income (category F) is subject to withholding tax. The tax is withheld by the employer and is calculated by applying the taxpayer's progressive income tax schedule. The employer calculates the withholding tax on the basis of the taxpayer's annual net salary (net of social security contributions). The withholding tax is then reduced by 1.5 per cent of the total amount of taxes due. The resulting tax is the annual tax due, 1/14 of which constitutes the monthly withholding tax for the private sector's employees (every employee receives 14 monthly salaries per year, i.e. 12 monthly wages plus 1 salary as Christmas bonus, ½ salary as Easter bonus and ½ salary as summer vacation bonus). For the employees of the public sector, the monthly withholding tax is calculated approximately as 1/12 of the annual tax due, because of the fact that bonuses in the public sector have been very significantly reduced. If the taxpayer's final tax liability (derived from the annual declared income) exceeds the aggregate of the amounts already withheld or prepaid, the remaining tax is generally payable in three equal bimonthly instalments. Any excess tax paid or withheld will be refunded.

10.1.3 Tax schedule

According to the new Law 4024/2011, enacted in 28/10/11, with a retroactive application since 1/1/2011, the tax schedule for income earned from 1/1/2011 onwards was modified again as following:

Tax schedule for individuals for income earned in 2011

Taxable income (EUR)	Tax Rate %	Tax for the step (EUR)	Total	
			Income Step (EUR)	Tax (EUR)
5. 000	0	0	5 000	0
12.000	10	700	7 000	700
16. 000	18	720	4 000	1 420
26. 000	25	2 500	10 000	3 920
40. 000	35	4 900	14 000	8 820
60. 000	38	7 600	20 000	16 420
100. 000	40	16 000	40 000	32 420
Over 100 000	45			

Note: 1. Married persons must submit a joint return, but taxes, duties and levies are calculated separately on the income declared by each spouse

With the new tax schedule, the tax free threshold is reduced from €8.000 to €5.000 in general and €9.000 for young people up to 30 years old, retired and handicapped people. There are now 8 tax brackets (instead of the previous 10).

In order to help the tax crosschecks and to fight tax evasion, the tax free amount of income is conditional upon the submission of a certain amount of receipts for goods or services received, which is calculated as 25% of the income and up to €60.000 declared income. Receipts for acquisition of assets, bills for utilities, tickets of transportation and expenses that are recognised for other deductions or credits are exempted.

In case of not providing or providing more than the required receipts, there is an additional 10 per cent penalty or tax credit respectively, on the difference.

The untaxed amount of income in respect of dependent children is increased as follows:

- by €2.000 for one child
- by €4.000 for two children
- by €3 000 for each child above two.

Only the principal is entitled to the increase in the tax-free amount for dependent children. If the principal does not earn income or his/her income is less than the income in the first tax bracket augmented by the tax-free amount for children, then the tax-free amount related to the dependent children or the part of the band increase that is not used by the principal, is added to the tax-free income amount of the other spouse.

10.1.4 Special solidarity contribution

A special solidarity contribution has been introduced (Law 3986/2011 article 29) in 2011. This contribution has been applied just in 2011 and it will be incorporated in the income tax system in 2012.

The calculations according the below table :

Total net income	Special contribution (%)	Special contribution (€)
12.001 - 20.000	1% of the total amount	120 - 200
20.001 - 50.000	2% of the total amount	400 - 1.000
50.001 - 100.000	3% of the total amount	1.500 - 3.000
100.000 -	4% of the total amount	4.000 -

10.2 Treatment of family income

Married persons (spouses) are taxed separately on their own separate income, but are required to submit a joint tax return.

10.3 Social insurance contribution scale

The average contributions rate paid by workers and employers to social insurance bodies is calculated on their gross income as follows:

	Employer	Employee	Total
1. Social Insurance Organisation (IKA)	18.43	9.22	27.65
2. Subsidiary Social Insurance Fund (ETEAM)	3.00	3.00	6.00
3. Other Funds	7.13	4.28	11.41
Total	28.56	16.50	45.06

Contributions are calculated on the basis of the monthly salary or wages paid but within the limits specified in the National General Collective Employment Agreement. Monthly gross remuneration includes salaries and wages, fringe benefits and bonuses and any profit distributions to employees. A ceiling of EUR 2 432.25 per month applies for individuals who have started working prior to 1-1-1993 (2010-ceiling). On the other hand, for individuals who have started working after 1-1-1993, the social security contributions ceiling is EUR 5 546.80.

The aforementioned rates and earnings are also taken into account for the calculation of the contributions on Christmas and Easter bonuses, as well as on the holiday bonus, on which separate contributions are paid to IKA-ETAM.

10.4 Scale of social insurance contributions to health bodies:

Persons insured with health bodies are divided into the old insured and the new insured, depending on the date on which they started paying contributions calculated on their remuneration, as follows:

1. **The old insured** are the persons firstly insured by 31-12-1992, and
2. **The new insured** are the persons firstly insured after 01-01-1993.

Pursuant to Act No2084/1992, a unified rate of contributions to illness – maternity insurance has been established for all wage earners and self-employed persons, as follows:

Wage earners - 2,55%, and

Self- employed persons - 7,65% or 6,45%, depending on the insurance category, to which they belong.

The rate of contributions to bodies, with which self-employed persons are insured and **which do not grant illness benefits in cash**, is set at 6,45%.

In case the rate of contributions to health bodies and illness sectors was larger before the promulgation of Act No.2084/1992, the larger rate continues to be paid for both the old and the new insured.

The contributions paid for the year 2010 to the ETAA - Unified Fund for the Independently Employed (with which physicians, lawyers, engineers, notaries are insured) are the same as those for the previous year, as follows:

1st	693.35 euro
2nd	852.63 euro
3rd	1,010.86 euro
4th	1,168.60 euro
5th	1,319.65 euro
6th	1,435.66 euro
7th	1,547.81 euro
8th	1,659.99 euro
9th	1,772.15 euro
10th	1,884.34 euro
11th	1,996.51 euro
12th	2,108.67 euro
13th	2,220.85 euro
14th	2,333.02 euro

The contributions for both the old and the new insured with the OAEE – Insurance Organization for Freelancers for the year 2010 are the same as those for the previous year, as follows:

1st	762.04 euro
2nd	930.71 euro
3rd	1,111.02 euro
4th	1,212.92 euro
5th	1,399.06 euro

6th	1,577.93 euro
7th	1,687.28 euro
8th	1,824.48 euro
9th	1,947.75 euro
10th	2,071.08 euro
11th	2,194.35 euro
12th	2,317.62 euro
13th	2,440.96 euro
14th	2,564.24 euro

11. Part-time employment

11.1 Special rules governing financial assistance to the part-time employed

The provision of Law 3846/2010 (para9, art.2) that stipulates that the earnings of the part-time employed who work for less than 4 hours daily increase by 7.5% has been abolished by virtue of paral, art.17 Law 3899/2010 “Emergency measures for the implementation of the support mechanism of the Greek economy” (O.G. 3846/2010). The prerequisite for part-time workers receiving the minimum remuneration provided for by the provisions in force ceases to exist.

This provision aims at supporting the part-time employed with less than 4 working hours daily and promotes the greater participation in the labour market, especially of young persons and women, i.e. persons for which this type of employment is the only possible due to educational, family or other obligations.

A prerequisite for the application of the above is that the part-time employed be offered the minimum fixed remuneration provided for in the existing provisions.

Concerning the part time employment at the OTA, by virtue of Act3250/2004, as in force (Act3536/2007), bodies of the public sector, the OTA and other Public Bodies Corporate were given the ability to hire personnel bound by a fixed-term contract of employment under private law for part-time employment for four hours per day and twenty per week; the contract is of eighteen (18) months duration. It is mandatory that the part-time personnel belong to vulnerable social groups (unemployed of various categories, victims of mass dismissals, mothers of underage children, persons with special needs, persons with three children, persons with more than three children), i.e. persons who, through this programme, achieve to support their family income as well as to accumulate time of service that is useful both for the collection of stamps and as previous service for future hiring/employment.

This personnel, as personnel bound by a fixed-term contract of employment under private law, is entitled by analogy to all remuneration and benefits provided for by law that are received each time by the respective permanent OTA personnel of the first and second degree, apart from the lump sum traveling expenses of the OTA personnel of the first and second degree (Act2685/99), since the working hours of this personnel do not justify the granting of the said expenses (article 28, para6, Act3536/2007).

The Ministry of the Interior subsidizes the first degree OTA of the Country from transferred credits of the State Budget, so that they cover payroll expenses of part-time employed staff hired for the realization of the OTA approved plans, as well as Public Bodies Corporate supervised by the OTA, for the provision of social services. To this end, in **2011**, **582** first-degree OTA of the country were subsidized with the amount of **40,990,135.00€**.

11.2 Special rules concerning taxation and social contributions regarding part-time employment

None.

12. Policy development

Measures taken in the year 2010 to deal with the financial crisis

1. Pursuant to article 31 of Law 3896/2010 (GG 207/8.12.2010, Volume A) on “*Application of the principle of equal opportunities and treatment of men and women in issues of labour and employment – Compliance of the applicable legislation with the 2006/54/EC Directive of the European Parliament and the Council, dated 5 July 2006, and other relevant provisions*” pensioners of the State, the public bodies corporate (who are in a relevant pension status as civil servants), the Merchant Seamen’s Fund (NAT) and of other main insurance bodies lying within the competence of the Ministry of Labour and Social Security (except the Agricultural Insurance Institute), are provided with a **special financial assistance in the form of a lump sum payment**, on condition that they are at the age of 60 and over and satisfy specific income criteria, i.e. their individual and family income must not exceed €10.500 and €16.500 respectively. The amount of the said financial assistance ranges **from €100 to €300**, depending on the limits set to personal and family incomes, as shown in the tax returns, which will be submitted in the fiscal year 2009 for incomes earned in the year 2008, as follows:

- a) **€300,00** for persons with annual personal and family incomes of up to **€7.000,00** and **€12.000,00** respectively,
- b) **€200,00** for persons with annual personal incomes ranging from **€7.000,01** to **€8.500,00** and annual family incomes up to **€14.500,00**,
- c) **€100,00** for persons with annual personal incomes ranging from **€8.500,01** to **€10.500,00** and annual family incomes up to **€16.500,00**.

The cost of the above-mentioned financial assistance is estimated at **€98.000.000,00** (a lump sum payment). The special financial assistance is tax-free, is subject to no deduction, is not offset by the outstanding debts to the State and is not included in the income criteria, which are necessary for the EKAS payment or for the payment of any other financial assistance of social or welfare nature.

The special financial assistance was paid together with the pension of January 2011 by the main insurance bodies, with which the beneficiaries concerned are insured.

2. In addition, according to the provisions of article 32 of the above law, special care is taken of specific beneficiaries, respecting the payment of Christmas and Easter bonuses and the paid annual leave bonus, and only for them, as follows:

- a) Pensioners receiving the non-institutional allowance provided for in article 42 of Act No1140/1981 (see page 5), as well as
- b) Blind pensioners covered by Act No612/1977, whose pension increases with the total disability allowance.

More specifically, as far as the above categories of pensioners are concerned, who are insured with main insurance bodies coming under the Ministry of Labour and Social Security and the NAT, it is defined that, regarding the non-institutional allowance and the total disability allowance, a monthly non-institutional allowance as well as a total disability allowance are granted as Christmas bonus, while half the said allowances are granted as Easter bonus and holiday bonus respectively.

Therefore, the said categories of pensioners are also granted the above amounts, in addition to Christmas and Easter bonuses, which they are entitled to, pursuant to article 3 para10 of Act No3845/2010.

Both Christmas and Easter bonuses for the non-institutional allowance or the total disability allowance and Christmas and Easter bonuses provided for by article 3 para10 of Act No3845/2010 are granted, on condition that the amount of pension – in which all the above-mentioned bonuses and the increases to meet family expenses are included – calculated on a twelve-month basis must not exceed €2.500.

If the monthly pension – following the above calculation – exceeds €2.500, then both Christmas and Easter bonuses provided for by article 3 para10 of Act No3845/2010 and Christmas and Easter bonuses for the non-institutional allowance provided for by article 42 of Act No1140/1981 or the total disability allowance are paid up to the amount of €2.500.

The cost of this regulation is estimated at €4.000.000,00 annually.

3. Respecting the measure instituted pursuant to article 38 of Act No3863/2010, for imposing a Solidarity Contribution with Pensioners on the amount of the main pension granted by all main insurance bodies coming under the Ministry of Labour and Social Security, the State and the Merchant Seamen's Fund, in para3c of the said article it is defined that the said measure does not apply to old age or disability pensioners who receive the non-institutional allowance or the total disability allowance provided for by article 42 of Act No1140/1981, as it applies.

ANNEX – ADDITIONAL INFORMATION ON NURSERIES

The Action "Reconciling family responsibilities and professional life" is part of the Operational Programme "Development of Human Resources" of the Ministry of Labour and Social Security and is co-financed by the European Social Fund (ESF) within the framework of the National Strategic Reference Framework for the period 2007-2013.

The Action aims at providing women beneficiaries with posts for the care and accommodation of infants, babies, children and adolescents in Structures (Infant Nurseries, Crèches [Day Nurseries], Nurseries of Integrated Care, Centres for the Creative Activities of Children (KDAP) and Centres for the Creative Activities of Children with Disabilities (KDAP MEA) and is targeted on the increase in women's employability and in their equal participation at work.

The said Action was materialized for the first time in the period 2008-2009 (children were accommodated from 1/9/2008 – 31/7/2009), by virtue of the Joint Ministerial Decisions No46855/1622/26-6-2008 and No60460/2171/28-8-2008, and the number of the benefited women – in accordance with the final tables– rose to 10.264, whereas the number of posts covered, as it was modified in the end, rose to 9.445, amount of financing: 19.417.008, 14Euros.

The Action continues to be carried out in the period 2009-2010, by virtue of Ministerial Decision No9.2776/3.553/6-4-2009, by our Organization as its Beneficiary within the same framework that it was carried out in the previous period (relevant information was provided in document No55080/2-2-2009) and with the following differences – improvements:

A) Preconditions for the participation of both the Structures and the women – more specifically:

- The Structures: KDAP which operate in two shifts within their working hours – and that is declared in their operation license – have the right to accommodate children up to the double of their capacity.
- The women who are unemployed and possess a valid unemployment card a month before the release of the Call for Interest (8/4/2009), as well as a copy of an individualized approach certification by the OAED, have the right to participate.
- The women – mothers of children with disabilities have the right to participate and their employment, socio-economic or other status is not taken into account.
- The women who are working mothers (salaried, self-employed, self-employed in the primary sector, participants in the Active Employment Policies, unemployed with a valid unemployment card, subsidized unemployed) have the right to participate and their annual declared family income is not taken into account (in the previous period 2008-2009, the income constituted a participation precondition).

B) Reform of the choice criteria and of the points system, as follows:

- Unified points for all working women (in the previous period 2008-2009, the number of points was given depending on the time of employment at the job)
- Additional points to women who receive a regular unemployment benefit by the OAED, and

C) Increase in the maximum annual expenditure limits in Euro (€), including the VAT paid by our Organization to Structures (Contractors), by post category and for the total of rendered services, as follows:

1. Infant Nurseries – Crèches [Day Nurseries]:

- Category A: infants 2 months old – young children 2,5 years old: 4.200,00Euros (for the previous period 2008-2009: 3.000,00Euros)
- Category B: young children 2,5 years old – children at the age that they start compulsory education: 3.500,00Euros (for the previous period 2008-2009: 2.520,00Euros)
- 2. Day Nurseries of Integrated Care:
 - Category C: infants 8 months old – young children 2,5 years old: 6.000,00Euros (for the period 2008-2009: 3.000,00Euros)
 - Category D: young children 2,5 years old – children at the age that they start compulsory education: 6.000,00Euros (for the period 2008-2009: 2.520,00Euros)
 - Category E: young children with disabilities 2,5 years old – children 6,5 years old: 6.000,00Euros (for the period 2008-2009: 4.200,00Euros)
- 3. Centres for the Creative Activities of Children (KDAP):
 - Category F: children at the age that they start compulsory education – children 12 years old and children with light types of mobility or sensory problems: 2.200,00Euros (for the period 2008-2009: 1.560,00Euros)
- 4. Centres for the Creative Activities of Children with Disabilities (KDAP - MEA)
 - Category G: children with disabilities or/and adolescents with mental retardation or/and mobility disabilities: 6.000,00Euros (for the period 2008-2009: 4.200,00Euros)

The abovementioned amounts of money cover the total cost of the services rendered by post and the Contractor is not able to receive payment of catering fees or any other type of fees from the benefited women.

All the aforementioned differentiations were evidently adopted within the effort to provide support to a larger number of women and, hence, to succeed in achieving the goal of the Action to the maximum degree possible.

Finally, we would like to mention that the total number of participating Structures, during the period 2009-2010, is 539 (the number of offered posts is 17.785) and the number of the persons benefited, in accordance with the final tables announced on 8/7/2009, is 14.888, whereas the total number of children who benefited from the programme amounts to 14,245.

The Ministry of Health and Social Solidarity founded and financed from the State Budget 1.306 State Day Nurseries with a capacity of 78.000 children (from the age of 2.5 years up to their registration with the Primary School) and 132 Infant Nurseries with a capacity of 10.000 children aged 8 months and up to their registration with the Primary School, with a view to helping working parents as well as economically weak families. Children facing social problems and, for this reason, needing special social care, i.e., children whose one or both parents are dead, children of unmarried mothers, of divorced or separated parents, families with more than three children, parents with physical or mental disability, etc, have priority in their enrollment to the said nurseries.

The possibility that State Day Nurseries and Infant Nurseries may be established is provided for in the provisions of article 13 of Emergency Act (2/11/1935) respecting State Day Nurseries (Official Gazette 527/A), and, in that case, the issue of a Presidential Degree was necessary on proposal of the competent Ministers.

In order to improve the living conditions of children and the services provided to them, parents paid catering fees depending on their family income.

It is pointed out that all State Day Nurseries and Infant Nurseries came ipso jure under the OTA, according to the provisions of article 12 of Act 2880/2001 (O.G9/A/30-01-2001), and now operate as municipal and community Public Bodies Corporate under article 239 of Act3463 (O.G.114/A) (Municipal and Community Code).

The operation of the new Municipal Legal Entities (former State Day Nurseries) is regulated by an Operation Regulation, which is drawn up by the pertinent Municipal or Community Councils and is based on the Model Operation Regulation that has been issued by joint

decision of the Ministers of the Interior, Public Administration and Decentralization and of Health and Welfare and is approved by decision of the General Secretary of the Region. The Ministry of Interior Affairs is responsible for the supervision and control of the above-mentioned municipal entities.

It is noted that an Inspectorate Body for Health and Welfare Services (SEYYP) was set up within the Ministry of Health and Welfare by Act 2920/2001 (O.G.131 volume A). The said Body may, *inter alia*, intervene in the first degree OTA Services, in the field of Welfare, in order to ascertain the quality and sufficiency of facilities and equipment, as well as in order to take the necessary safety measures for the children's and the personnel's healthy living conditions.

Furthermore, 164 Day Nurseries and Infant Nurseries were operated by bodies supervised by the Ministry of Health and Social Solidarity (National Foundation for the Protection of Mother and Child [PIKPA], National Welfare Organization [EOP], Infants' Centre "MITERA", Institution of Athens Infant Nurseries, Institution of Thessalonica Infant Nurseries and Institution of Larissa Infant Nurseries), which were financed by the State Budget. These Nurseries, in accordance with article 8 of Act 3106/10-2-2003 (O.G.30 vol. A) on the "Reorganization of the National Social Care System", are now under the competency of the municipalities and communities, in whose administrative region they operate.

The personnel employed in the nurseries are hired in accordance with the standard procedures applying to the hiring of personnel in the Public Sector.

39 Nurseries have been founded and are operated by Charities (non-profitable), some of which are subsidized symbolically by the State Budget.

Also, approximately 1090 Private Day and Infant Nurseries operate (private enterprises).

The Nurseries founded by Charities, as well as the Private Day and Infant Nurseries, operate upon relevant license issued by decision of the Prefect of the local Prefecture, in accordance with the prerequisites set by Ministerial Decision No.P2b/oik.2808/97 (O.G.645/B/97), as amended and supplemented subsequently.

The personnel employed in these units are hired by persons or legal entities, in the name of which the operation license has been issued; the hiring of said personnel is approved by decision of the Directorate or the Section of Public Welfare of the local Prefecture.

The inspection concerning the smooth operation of these units is carried out by the competent services of the Prefecture pursuant to the provisions of article 1 of Act 2345/1995 (O.G.213/A/95)¹.

According to the provisions of art. 214 and 125 of law 3852/2010 the above mentioned OTA legal entities are under the supervision of the State, that is responsible for the legitimacy of their actions and the disciplinary control of their elected members.

Board fees are paid to the majority of nurseries; either based on the parents' income category or a fixed amount of 10€ up to 150€ on a monthly basis.

For the year 2011, 187 Local Self-government Agencies of 1st degree were given € **201,773,682.25** (together with the regular subsidy granted to all Municipalities and Communities throughout the country on a monthly basis) to cover operational expenses and, mainly, for the remuneration of the personnel of infant and day nurseries provided for by Acts No2880/2001 and No3106/2003. The said amount shows a decrease by 12,42%, compared with that granted in 2010, which is due to the new fiscal measures taken in our country.

Moreover, by Joint Ministerial Decision No0.8363/3.1434 (Official Gazette 556/B/29.4.2010), as it was amended and applies after the issue of the Joint Ministerial Decision: 1.8010/3.1413 (O.G. 1230/B/14.11.2011) on "System of Management, Assessment, Monitoring and Control – Process of implementation of Action "Reconciliation of family and

¹ For the time being there are no available data for the nurseries that function under the auspices of the OTA legal entities or their enterprises.

professional life”, which is co-financed by the European Social Fund within the framework of the National Strategic Reference Framework 2007-2013”, according to the new framework of operation of childcare structures (infant nurseries, infant nurseries of integrated care, day nurseries, centres for children’s participation in creative activities and centres for the participation of children with disabilities in creative activities), women beneficiaries are offered with posts concerning the care of infants, preschoolers and children, which is provided in relevant structures. This action has personal character and is targeted on all women meeting the criteria provided for by the aforementioned Joint Ministerial Decisions.

D) Treatment of special groups:

In order to deal with the effects of the financial crisis, reduce public expenditure and secure the insurance rights of the unemployed persons, Law 4024/2011 (art.33) “Regulations on pensions, unified wage and grade scale, job redundancy and other provisions to implement medium term fiscal strategy framework 2012-2015” introduced the institution of pre-retirement suspension in the public sector. More specifically, the pre-retirement suspension concerns government officials who by the 31st/12/2013 are at least 55 years old and have completed 35 years of service.

According to the above mentioned Law, until they have fulfilled the necessary prerequisites the employees receive 60% of the last wage, enjoy full insurance coverage and the time of suspension is calculated for their pension. When the period of the pre-retirement suspension ends, the employees get full pension, which is calculated according to their earnings before the said law entered into force. Some employees’ categories have been excluded from the pre-retirement suspension based on either public interest criteria (doctors, teachers etc) or social criteria (persons with disabilities, single parents etc).

In addition to that, the above mentioned Law introduced the labour reserve for the private law employees of indefinite time in the public sector (art. 34). For those who constitute full pension right until 31.12.2012, the same adjustments as for the pre-retirement suspension stand.